

# Privacy Policy

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How upbss collects, uses and protects your personal data, and the rights you have over it under UK data protection law.

**DRAFT FOR LEGAL REVIEW — NOT LEGAL ADVICE.** This document was prepared as a working starting point for a UK-based estate agency website. It has not been reviewed by a solicitor. Before publishing it you must (a) have it checked by a qualified UK lawyer or data protection specialist, (b) verify every statement against what your business actually does with personal data, and (c) replace every HIGHLIGHTED PLACEHOLDER. Third-party contact details and registration thresholds should be re-checked at the date of publication, as they change.

## 1. Who we are

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[LEGAL ENTITY NAME] (“upbss”, “we”, “us”) is the **controller** of the personal data described in this policy. We are a company registered in Scotland under company number [SC COMPANY NUMBER], with our registered office at [REGISTERED OFFICE ADDRESS, EDINBURGH].

We are registered with the Information Commissioner’s Office (ICO) under registration number [ICO REGISTRATION NUMBER]. As an estate agency business we are also supervised for anti-money-laundering purposes by [HMRC / OTHER SUPERVISORY BODY], and are a member of the [THE PROPERTY OMBUDSMAN / PROPERTY REDRESS SCHEME] redress scheme under membership number [NUMBER].

For any question about this policy or about how we handle your data, contact [DATA PROTECTION CONTACT NAME / ROLE] at [EMAIL] or [POSTAL ADDRESS].

*Note for review:* if your processing is large-scale or includes regular systematic monitoring, you may be required to appoint a formal Data Protection Officer. Most small estate agencies are not, but this should be confirmed.

## 2. The law this policy is written under

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We process personal data in accordance with the **UK General Data Protection Regulation (UK GDPR)** and the **Data Protection Act 2018**. Electronic marketing and the use of cookies and similar technologies are also governed by the **Privacy and Electronic Communications Regulations 2003 (PECR)** — see our separate Cookie Policy.

Data protection law is reserved to the UK Parliament and applies identically in Scotland. The Information Commissioner’s Office regulates it throughout the UK and maintains a Scottish office.

## 3. The personal data we collect

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We collect only what we need in order to answer your enquiry and, where relevant, to market, let or purchase a property.

- **Identity and contact data** — your name, email address, telephone number and postal address.
- **Enquiry data** — the content of your enquiry and the property it relates to.
- **Property data** — details you enter into the instant appraisal tool: property type, location, floor area, age and condition.
- **Transaction data** — where you instruct us or make an offer: your financial position, proof of funds, mortgage arrangements, solicitor details and offer history.
- **Identity verification data** — where required by law: passport, driving licence, proof of address and source-of-funds evidence.
- **Technical data** — IP address, browser type and pages visited.
- **Marketing preferences** — whether you have opted in to property alerts, and any opt-out you have exercised.

We do not seek special category data (such as health data). If you volunteer it — for example explaining that a sale is driven by a medical situation — we will record only what is necessary and will not use it for any other purpose.

#### 4. Why we use your data, and our lawful basis

UK GDPR requires us to have a lawful basis for each use of your data. Ours are:

| What we use it for                                                                   | Lawful basis                                                | Notes                                                                                                    |
|--------------------------------------------------------------------------------------|-------------------------------------------------------------|----------------------------------------------------------------------------------------------------------|
| Responding to your enquiry                                                           | Legitimate interests; or steps prior to entering a contract | Our interest is in answering people who contact us about property.                                       |
| Providing agency services once you instruct us                                       | Performance of a contract                                   | Governed by your signed agency agreement.                                                                |
| Identity and source-of-funds checks                                                  | Legal obligation                                            | Money Laundering, Terrorist Financing and Transfer of Funds (Information on the Payer) Regulations 2017. |
| Providing an indicative appraisal                                                    | Consent; or legitimate interests                            | You choose to submit the details.                                                                        |
| Property alerts and marketing email                                                  | Consent, or the PECR “soft opt-in”                          | See section 5.                                                                                           |
| Meeting our obligations under the Estate Agents Act 1979 and consumer protection law | Legal obligation                                            | Including records of offers received and disclosed.                                                      |
| Keeping records to defend legal claims                                               | Legitimate interests                                        | Our interest is in being able to answer a complaint or claim.                                            |
| Website analytics, if enabled                                                        | Consent                                                     | Set only if you accept, via the cookie banner.                                                           |

Where we rely on legitimate interests, we have assessed that our interest does not override your rights. You may object at any time — see section 9.

## 5. Marketing

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We will only send you marketing email or SMS where you have opted in, or where you have previously enquired about a similar property service from us and have not opted out (the “soft opt-in” permitted by PECR regulation 22).

Every marketing message carries a working unsubscribe link, and you can opt out at any time by emailing [\[EMAIL\]](#). Opting out of marketing does not stop service messages about a transaction you are actively involved in.

We do not sell your personal data, and we do not share it with third parties for their own marketing.

## 6. Who we share your data with

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We share data only where it is necessary:

- **The other side of a transaction** — the property owner, or a prospective buyer or tenant relevant to your enquiry.
- **Professional advisers** — the solicitors, chartered surveyors and mortgage brokers you have asked us to deal with. In Scotland your solicitor conducts the offer and missives process, so we will correspond with them directly.
- **Home Report providers** — the chartered surveyor who prepares your Single Survey and Energy Report, where you ask us to arrange it.
- **Registers of Scotland** — indirectly, through your solicitor, when a transaction is registered.
- **Property portals** — where your property is advertised. Note that listing data published on a portal is, by design, public.
- **Identity verification providers** — for anti-money-laundering checks.
- **Our IT, hosting and email providers** — under written data processing agreements.
- **Regulators, law enforcement and HMRC** — where we are legally required to disclose. Where a disclosure relates to a suspicion of money laundering, we may be prohibited by law from telling you it has been made.
- **A buyer of our business** — if we are sold or merged.

## 7. International transfers

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We aim to keep personal data within the UK. Where a supplier stores or accesses data outside the UK, we rely on either UK adequacy regulations for the destination country, or the ICO’s International Data Transfer Agreement (IDTA) or the UK Addendum to the EU Standard Contractual Clauses, together with a transfer risk assessment.

*Note for review:* the website currently loads fonts from Google Fonts, which discloses visitor IP addresses to Google. Confirm how this is handled, or self-host the fonts — see the Cookie Policy.

## 8. How long we keep it

| Record                                        | Retention period                                                                       |
|-----------------------------------------------|----------------------------------------------------------------------------------------|
| Enquiries that do not lead to a transaction   | 24 months from last contact                                                            |
| Instant appraisal submissions (non-clients)   | 24 months                                                                              |
| Client files and transaction records          | 5 years from settlement or termination (see note below)                                |
| Home Report and related survey correspondence | 5 years                                                                                |
| Anti-money-laundering records                 | 5 years from the end of the business relationship or the completion of the transaction |
| Marketing consents and opt-outs               | Until withdrawn; suppression records kept indefinitely so we do not re-contact you     |
| Accounting records                            | 6 years, per HMRC requirements                                                         |

The 5-year figure reflects the short negative prescription for contractual obligations under the **Prescription and Limitation (Scotland) Act 1973**. This is a genuine difference from England and Wales, where the equivalent limitation period is 6 years — do not simply copy an English retention schedule. Accounting records are kept for 6 years because HMRC requirements are UK-wide. All retention periods should be confirmed against your professional indemnity insurer's requirements.

## 9. Your rights

Under UK GDPR you have the right to:

- **Be informed** about how your data is used — this policy.
- **Access** a copy of the data we hold about you.
- **Rectify** data that is inaccurate or incomplete.
- **Erase** your data, where we have no overriding reason to keep it. This right does not override our legal duty to retain anti-money-laundering records.
- **Restrict** our processing while a query is resolved.
- **Data portability** — receive data you gave us in a machine-readable form.
- **Object** to processing based on legitimate interests, and to direct marketing at any time. An objection to direct marketing is absolute.
- **Withdraw consent** at any time, where we relied on it.

To exercise any of these, email [\[EMAIL\]](#). We will respond within **one month**. There is no charge unless a request is manifestly unfounded or excessive. We may ask you to verify your identity first.

## 10. Automated decision-making

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The instant appraisal tool produces an indicative figure automatically from the details you enter. It does not make any decision about you, produces no legal or similarly significant effect, and no decision about whether to work with you is made on the basis of it. Every appraisal is reviewed by a person before it is acted on.

## 11. Security

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Personal data is transmitted over TLS and stored on access-controlled systems. Access is limited to staff who need it for their role. We keep a record of personal data breaches and, where a breach is likely to result in a risk to your rights, we will report it to the ICO within 72 hours and tell you where the risk is high.

## 12. How to complain

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Please raise any concern with us first — see our Complaints Procedure. If you remain dissatisfied, you have the right to complain to the Information Commissioner's Office:

Information Commissioner's Office, Wycliffe House, Water Lane, Wilmslow, Cheshire SK9 5AF  
Helpline 0303 123 1113 · [ico.org.uk/make-a-complaint](https://ico.org.uk/make-a-complaint)

Complaining to the ICO does not affect your right to seek a remedy through the courts.

## 13. Changes to this policy

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We may update this policy. The version published on our website is the one that applies, and the “last updated” date below will change. Where a change is significant we will tell affected individuals directly.

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**upbss — Privacy Policy.** Version 0.2 (draft, Scotland). Last updated [DATE]. Data protection law is UK-wide, so this document changes least between jurisdictions — but retention periods follow Scots prescription, not English limitation. Requires review by a Scottish solicitor before publication.